

Cashkr Online Service Partner Onboarding Agreement

1. DEFINITIONS AND INTERPRETATION

For the purpose of this Agreement, the following terms shall have the meanings ascribed to them below, unless the context otherwise requires:

1.1 "Agreement" means this legally binding document executed electronically between the Vendor and BigBold Technologies Pvt. Ltd. ("Cashkr"), along with any amendments or annexures, governing the rights and obligations of both parties.

1.2 "Cashkr" refers to BigBold Technologies Pvt. Ltd., a company incorporated under the Companies Act, 2013, having its registered office at Tandice 69, Gundavali, Andheri East, Mumbai, Maharashtra 400047, India. "Cashkr" is a registered trademark owned exclusively by BigBold Technologies Pvt. Ltd.

1.3 "Vendor", also referred to as "Partner" or "Lead Partner," means any individual or legal entity registered on the Cashkr Partner App and authorized to carry out device collection, inspection, documentation, and payment tasks as per the terms herein.

1.4 "Customer" means any individual or business entity who expresses intent to sell, recycle, or dispose of their device(s) using the Cashkr platform (either web or app).

1.5 "Product(s)" refers to electronic and other items listed and serviced under the Cashkr platform including, but not limited to, mobile phones, tablets, laptops, desktops, MacBooks, smartwatches, luxury watches, drones, televisions, air conditioners, gaming consoles, cameras, cars, and motorcycles.

1.6 "Partner App" means the proprietary software platform developed by Cashkr and used by Vendors to accept leads, communicate with Customers, record transactions, update status, submit documentation, and perform other operational functions.

1.7 "Lead" means a validated sale intent generated by a Customer on the Cashkr platform, representing a potential transaction that has been assigned to an eligible Vendor for fulfillment.

1.8 "Pickup Address" means the exact location (home or office) provided by the Customer for collection of the Product, and where the inspection and transaction are required to take place.

1.9 "Agent" means any individual hired, appointed, or engaged by the Vendor to assist in fulfilling lead obligations on behalf of the Vendor. Agents operate under the Vendor's direct supervision and responsibility through the Cashkr Partner App's agent management feature.

1.10 "Re-quote" refers to the process by which the initially quoted price is reassessed and updated by the Vendor or their authorized Agent based on actual physical inspection of the Product, subject to the Customer's acceptance and digital acknowledgment through the Partner App.

1.11 "Documentation" refers to all mandatory identity and ownership verification documents including, but not limited to, government-issued ID proof, original purchase invoice, and any other records required by Cashkr for regulatory compliance and fraud prevention.

1.12 "Relationship Manager" means a representative assigned by Cashkr to handle Vendor queries, disputes, compliance escalations, and operational oversight.

1.13 "Force Majeure" refers to any unforeseeable, uncontrollable event or condition that prevents a party from fulfilling its contractual obligations including but not limited to natural disasters, war, strikes, regulatory changes, pandemics, or power outages.

2. SCOPE AND ENGAGEMENT OF SERVICES

2.1 Engagement as Independent Vendor

Cashkr hereby engages the Vendor as an independent third-party service provider for the limited and specific purpose of fulfilling lead-based product collection, inspection, re-quotation (if applicable), documentation, and payment obligations on behalf of the platform. The Vendor acknowledges and agrees that their engagement is non-exclusive, non-transferable, and does not constitute an employment, agency, partnership, or joint venture relationship with Cashkr.

2.2 No Authority to Bind

The Vendor shall have no authority to make representations on behalf of Cashkr, enter into contracts in Cashkr's name, or bind Cashkr in any manner whatsoever. The Vendor shall present themselves as an **independent partner working with Cashkr** and must clearly communicate their independent contractor status to Customers during the lead fulfillment process.

2.3 Nature of Services Rendered

The Vendor agrees to provide the following services in strict accordance with the operational procedures and policies prescribed by Cashkr, which may be amended from time to time:

- (a) Accept eligible leads assigned via the Cashkr Partner App based on availability and zone
- (b) Contact the Customer within the required timeframe post lead acceptance.
- (c) Visit the Pickup Address personally (home or office) or through authorized Agent to inspect the Product.
- (d) Verify the Product condition as per Cashkr's diagnostic protocol.
- (e) Execute re-quote through the App only, if condition mismatches occur, with mandatory Customer consent.
- (f) Collect and upload required documentation (ID, invoice, etc.) before marking the transaction complete.
- (g) Initiate payment to the Customer using only approved methods (UPI, IMPS, bank transfer, and cash).
- (h) Update the lead status on the App accurately and without delay.
- (i) Return incomplete or failed leads with proper justification and evidence where applicable.

2.4 Service Areas and Operational Boundaries

The Vendor shall operate only within the geographic areas (pin codes) that they have submitted and confirmed with Cashkr during registration. Vendors will receive leads exclusively from their pre-approved pin code list. Any request to modify service areas must be submitted through the Partner App and requires Cashkr's approval. Unauthorized operations outside the designated zones may result in suspension or deactivation.

2.5 Timeliness of Execution

The Vendor agrees to adhere to the pickup slot chosen by the Customer. Delays, missed appointments, or failure to communicate in a timely manner shall be

deemed a breach of service obligations under this Agreement and may result in lead forfeiture, suspension, or penalties as determined by Cashkr.

2.6 Product Condition Policy

The Vendor must not alter, mishandle, or damage the Product before the transaction is completed. The inspection must occur in the presence of the Customer. Any mishandling or coercion to reduce price through improper tactics shall be grounds for immediate termination and may invite legal action.

2.7 Exclusivity of Cashkr Platform

The Vendor shall not divert, solicit, or convince Customers to sell their Product outside the Cashkr ecosystem. Any attempt to complete transactions off-platform, accept payment outside the App structure, or engage in parallel resale activity shall constitute a material breach of this Agreement.

2.9 Agent Management and Responsibilities

- (a) Vendors may hire and manage Agents to assist in lead fulfillment through the Cashkr Partner App's agent management feature. All Agent activities are subject to the same terms and conditions as outlined in this Agreement.
- (b) The Vendor shall be fully responsible and liable for all actions, omissions, and conduct of their Agents. Any breach by an Agent shall be deemed a breach by the Vendor.
- (c) Agents may only access leads that are specifically assigned to them by the Vendor through the Partner App. Agents cannot independently accept or pick leads.
- (d) All Agent registrations must be completed through the Partner App with mandatory submission of: Agent's photograph, first name, last name, mobile number, email address, and Aadhaar card (front and back).
- (e) Agents must comply with all communication standards, conduct requirements, documentation obligations, and operational procedures as specified for Vendors in this Agreement. Agents shall also identify themselves as independent service providers working with Cashkr.
- (f) The Vendor may be held liable for any misconduct, fraud, or violation committed by their Agents, and such incidents may result in termination of the Vendor's account.

2.8 Use of the Partner App

All transactional steps, communication logs, re-quotes, documentation uploads, and payment records shall be managed exclusively through the Partner App. Manual documentation or informal updates will not be accepted and shall render the lead invalid for credit refunds or dispute resolution.

3. OBLIGATIONS OF THE VENDOR

This section outlines the specific, binding responsibilities that the Vendor shall strictly adhere to throughout their engagement with Cashkr. These obligations are legally enforceable and nonnegotiable unless expressly amended in writing by Cashkr.

3.1 Communication Standards

- (a) Upon accepting any lead via the Partner App, the Vendor shall contact the Customer within **1 (one) hour** to confirm the pickup schedule and arrange a visit within the mutually agreed-upon timeframe.
- (b) All communication must be conducted professionally as an **independent partner working with Cashkr**. The Vendor shall clearly identify themselves as an independent service provider and refrain from claiming to be a direct employee or representative of Cashkr.
- (c) The Vendor must not solicit personal information or promote third-party services to the Customer during or after the transaction.
- (d) Phone calls and messages initiated through or outside the App may be monitored or recorded for quality, compliance, and dispute resolution. **The Vendor consents to make and receive calls for order-related communications.**

3.2 Pickup and Transaction Protocol

- (a) The Vendor is required to visit only the **exact address** provided by the Customer. Pickup at hotels, malls, public places, or meeting mid-way is strictly prohibited.
- (b) Physical inspection must be performed **in person**, in the presence of the Customer. Remote re-quoting or price discussion over phone or video calls is not permitted.
- (c) All transactions must be concluded within the pre-agreed time slot. Delays must be communicated immediately through the App and to the Customer.

3.3 Re-Quotation Rules

- (a) If the condition of the Product does not match the details provided by the Customer, the Vendor or their authorized Agent shall initiate a re-quote **only using the in-app feature.**
- (b) The revised price must be agreed upon by the Customer and acknowledged digitally via the App.
- (c) Re-quoting without visiting the customer location, or negotiating verbally without formal inspection, will lead to a formal warning. A second occurrence will result in **immediate termination of this Agreement.**

3.4 Document Collection

The Vendor must collect the following documents at the time of pickup and upload them on the App:

- **Valid Government-issued ID proof** of the Customer (Aadhaar, PAN, Voter ID, Passport, etc.)
- **Original invoice** of the Product (if available)
- **Product images** including IMEI/Serial numbers and condition (front, back, sides)

Failure to collect and upload these documents will void the lead, and Cashkr will not be held liable for any claim, refund, or legal issue arising thereafter.

3.5 Payment Obligations

- (a) The Vendor shall pay the Customer on the spot at the agreed-upon price (quoted or re-quoted), using only **Cashkr-approved payment methods**, such as UPI, IMPS, or Bank Transfer.
- (b) Cash payments are allowed as one of the approved payment methods as selected by the Customer.
- (c) Non-payment, short payment, or false claims regarding payment will result in suspension and legal recovery action by Cashkr, including criminal liability.

3.6 Accuracy of Status Updates

The Vendor is obligated to:

- Accurately mark the lead status as "Completed," "Failed," or "Re-quoted" immediately after action.
- Provide supporting notes or images in case of failure or re-quote.
- Avoid misreporting or leaving leads open beyond 24 hours from scheduled pickup.

3.7 Indemnification

The Vendor agrees to indemnify and hold Cashkr harmless against any claims, liabilities, damages, losses, or expenses arising from their actions or inactions, including but not limited to breaches of the terms and conditions of this Agreement or infringement of applicable laws.

3.8 Conduct and Professionalism

- The Vendor shall conduct themselves with the utmost honesty, courtesy, and professionalism during all Customer interactions.
- Abusive language, coercion, verbal threats, or harassment of any kind shall result in permanent deactivation and prosecution under applicable Indian laws.

4. RIGHTS AND OBLIGATIONS OF CASHKR

Cashkr, as the owner and operator of the Cashkr Platform and the Cashkr Partner App, retains certain legal, operational, and administrative rights while being bound by defined obligations toward Vendors.

This section details the scope of Cashkr's authority, responsibilities, and limitations under this Agreement.

4.1 Platform Access and Lead Assignment

- (a) Cashkr shall provide the Vendor with access to the Cashkr Partner App, subject to registration, KYC verification, and ongoing compliance.
- (b) Cashkr shall allocate leads based on service area, performance, availability, and customer scheduling preferences. Allocation of leads is discretionary and not guaranteed.
- (c) Cashkr reserves the right to reassign or revoke a lead at any point before pickup, without explanation or compensation, to maintain customer service quality.

4.2 Monitoring, Evaluation, and Auditing

- (a) Cashkr reserves the right to monitor all activity performed through the Partner App, including but not limited to lead status, location tracking, call logs, documentation uploads, payment confirmations, and customer reviews.
- (b) Cashkr may audit Vendor performance periodically and issue performance reports, warnings, or recommendations.
- (c) In the event of suspected fraud, customer complaint, or breach of policy, Cashkr may initiate a formal investigation, during which the Vendor shall cooperate fully and transparently.

4.3 Customer Relationship and Support

- (a) Cashkr shall be the sole owner of the customer relationship. The Vendor shall not solicit, retain, or contact the Customer post-transaction for any personal or competitive business purposes.
- (b) All customer feedback, complaints, or refund requests will be handled exclusively by the Cashkr Support and Relationship Management teams.
- (c) In disputed cases, Cashkr shall collect inputs from both Customer and Vendor before arriving at a decision. Cashkr's final decision shall be binding.

4.4 Platform Policy and Operational Changes

- (a) Cashkr may, at its sole discretion, modify the App features, update service rules, change operational workflows, or update payout mechanisms.
- (b) Cashkr shall notify the Vendor of any material changes in Terms & Conditions through the App, email, or in-app notice.
- (c) Continued usage of the Platform after such updates shall constitute deemed acceptance by the Vendor.

4.5 Refunds and Lead Credit Decisions

- (a) Cashkr shall determine eligibility for refund of lead credits in cases where the lead failed due to no fault of the Vendor (e.g., Customer unavailability, incorrect address, refusal to sell).
- (b) All refund decisions will be made after review by the assigned Relationship Manager and based on supporting evidence such as call logs, photos, GPS trail, and customer feedback.
- (c) Vendors shall not have any independent right to challenge lead pricing, credit deductions, or refund denials beyond the internal grievance redressal mechanism.

4.6 Termination and Suspension Rights

- (a) Cashkr retains the right to suspend or permanently terminate Vendor access to the App without prior notice in cases of policy violations, criminal complaints, repeated poor performance, or non-cooperation.
- (b) Such termination shall be effective immediately and without any liability on Cashkr for pending leads, payments, or platform access.

4.7 Data Security and Confidentiality

- (a) Cashkr shall implement reasonable technical and organizational measures to secure Vendor and customer data processed via the Platform.

- (b) Cashkr shall retain all rights to anonymize, analyze, and use operational data for internal analytics, audits, fraud prevention, and product improvement.

5. PAYMENT TERMS AND FINANCIAL CONDITIONS

This section outlines the financial responsibilities, authorized payment methods, and related compliance requirements applicable to the Vendor. All monetary transactions carried out in connection with leads must adhere strictly to the clauses outlined below.

5.1 Payment to Customers

- (a) The Vendor shall pay the Customer the full quoted or re-quoted amount **immediately upon completion of the pickup** and after the verification process is complete, using only **Cashkr-approved digital payment methods**.
- (b) Approved payment methods include **Unified Payments Interface (UPI), bank transfers, and cash payments**. The Customer may select any of these three payment methods to receive their payment.
- (c) Payment shall be completed in the presence of the Customer and simultaneously updated on the Partner App with valid proof of transaction (screenshot, UTR, reference ID).
- (d) Incomplete or delayed payments may result in customer disputes and potential recovery action from Cashkr. Such cases will also attract a temporary suspension of the Vendor's lead access until resolution.

5.2 Lead Fee and Platform Usage Charges

- (a) Cashkr may charge a service fee (hereinafter referred to as "lead credit") to the Vendor for each accepted lead. This fee shall be deducted from the Vendor's pre-loaded balance maintained on the Partner App.
- (b) These charges are dynamic and determined based on factors such as device type, location, demand, historical acceptance behavior, and customer segment.
- (c) Once a lead is accepted and not completed due to the Vendor's negligence, the lead credit shall be **non-refundable**. Additionally, if any fault is found with the Vendor's performance, Cashkr may deduct from the Vendor's pre-loaded wallet balance as deemed appropriate.

5.3 Wallet and Credit Balance Management

- (a) The Vendor is required to maintain a sufficient prepaid wallet balance in the Cashkr Partner App to accept and process leads.

- (b) In case of insufficient balance, the Vendor shall not be eligible to receive or accept new leads.
- (c) Cashkr reserves the right to offer wallet top-up offers, minimum balance thresholds, or incentives through in-app notifications.

5.4 Refunds and Dispute Resolution for Financial Claims

- (a) If a Vendor believes a lead failed due to no fault of theirs (e.g. Customer not available, address unreachable), they may request a refund of the lead credit by submitting evidence (call recordings, chat history, photos, etc.) within **24 hours** of lead failure.
- (b) Cashkr shall review refund requests and make a final determination based on objective verification of submitted evidence and customer feedback.
- (c) Any payment dispute raised by the Customer will be thoroughly investigated, and in the event of Vendor misconduct or misreporting, Cashkr reserves the right to penalize the Vendor or initiate legal recovery action.

5.5 Taxation and Compliance

- (a) The Vendor shall be solely responsible for reporting and paying applicable taxes (including GST, income tax, or TDS if applicable) on earnings received from Customers during the fulfillment of leads.
- (b) Cashkr may issue monthly or quarterly invoices/statements to the Vendor on request, but shall not be responsible for maintaining books of accounts or filing taxes on behalf of the Vendor.
- (c) Where mandated by law, Cashkr reserves the right to deduct TDS or apply GST to applicable platform fees.

5.6 Payment Integrity and Anti-Fraud Safeguards

- (a) Vendors are prohibited from collecting any additional or hidden charges from Customers beyond the amount quoted or re-quoted via the App.
- (b) Demanding cash under the pretext of "service charge," "inspection fee," or "pickup charges" is a serious violation and shall result in permanent blacklisting.
- (c) Any manipulation of App-based financial records or submission of falsified transaction proofs shall be reported to the appropriate law enforcement authority under applicable Indian Penal Code sections related to fraud, cheating, and forgery.

6. DOCUMENTATION, IDENTITY VERIFICATION & RECORD KEEPING

The Vendor is legally and operationally responsible for ensuring that every transaction is supported by the complete collection, verification, and upload of all mandatory documentation as prescribed herein.

Failure to comply with these obligations will be treated as a breach of contract and may attract penalties, suspension, or legal liability under relevant laws.

6.1 Mandatory Documentation

The following documents shall be collected from the Customer in original or legible digital format at the time of every lead fulfillment:

- (a) **Government-Issued ID Proof:** Valid identification documents such as Aadhaar Card, Voter ID, Driving License, or Passport. The ID must clearly show the Customer's full name and photograph.
- (b) **Purchase Invoice (if available):** Original or digital proof of purchase for the Product being sold. This includes retail invoices, GST bills, e-commerce order receipts, or any manufacturer-issued proof.
- (c) **Product Images:** High-quality photographs taken at the time of pickup, showing:
 - Front, back, and all physical sides of the Product
 - IMEI number (for phones/tablets) or Serial numbers (for other products)
 - Model number and brand details
 - Accessories, damage marks, or missing components (if applicable)

6.2 Upload Guidelines and Timelines

- (a) All documentation must be uploaded to the Cashkr Partner App **before the transaction is marked as complete**.
- (b) Uploads must be clear, readable, and unedited. Blurred, cropped, or manipulated images will not be accepted.
- (c) In case of poor network or technical errors, the Vendor must report the delay immediately via the App or to the assigned Relationship Manager. However, uploads must still be completed within **2 hours** of lead fulfillment.

6.3 Verification and Authenticity

- (a) It is the Vendor's duty to verify the authenticity of the ID proof and ensure that the name on the ID matches the person handing over the Device.
- (b) In case of discrepancy or doubt regarding ownership, the Vendor shall **not proceed with the pickup** and must escalate the case to the Relationship Manager immediately.
- (c) Any negligence or willful acceptance of fake documents shall be treated as **intentional misconduct** and Cashkr reserves the right to initiate criminal proceedings against the Vendor under applicable laws.

6.4 Record Retention and Data Security

- (a) All uploaded documentation becomes the property of Cashkr and will be retained securely in compliance with the Information Technology Act, 2000 and applicable data protection laws.
- (b) Vendors are strictly prohibited from storing, saving, printing, duplicating, or sharing any Customer documents or images outside the Partner App. Any such action will be considered a **violation of privacy law** and subject to legal prosecution.
- (c) Vendors shall not request any personal documents that are not listed above or not required for lead processing.

6.5 Consequences of Non-Compliance

- (a) Leads marked as "completed" without documentation will be considered **invalid** and the transaction will be automatically flagged for review.
- (b) No lead refund shall be entertained in cases where documentation was not uploaded as per Cashkr policy.
- (c) Repeated failure to upload documentation will result in:
 - 1st violation: Warning notice
 - 2nd violation: Temporary suspension of lead access
 - 3rd violation: Permanent deactivation and legal liability

7. COMPLIANCE, RESTRICTIONS & PROHIBITED CONDUCT

This section outlines all operational, legal, and ethical restrictions imposed on the Vendor under this Agreement. Any deviation from these standards shall be treated as a material breach of contract and may result in immediate legal, financial, and criminal consequences.

7.1 Compliance with Laws

- (a) The Vendor agrees to comply with all applicable laws, rules, and regulations in force in India, including but not limited to:
 - The Indian Contract Act, 1872
 - The Information Technology Act, 2000
 - The Consumer Protection Act, 2019
 - The Indian Penal Code, 1860 (particularly Sections 415, 420, 468, 469, and 471 relating to fraud, forgery, and impersonation)
 - Any local laws applicable to the jurisdiction of pickup

- (b) The Vendor further agrees to abide by all operational guidelines, safety advisories, and standard operating procedures as issued by Cashkr from time to time.

7.2 Prohibited Conduct

The following actions are strictly prohibited and shall constitute immediate grounds for deactivation, blacklisting, and criminal reporting:

- (a) Soliciting customers to complete transactions outside the Cashkr platform.
- (b) Offering a higher or lower price to divert leads for personal gain.
- (c) Collecting cash or unrecorded payments from customers.
- (d) Sharing personal business cards, promotional material, or self-branded merchandise with customers.
- (e) Storing, copying, or misusing any customer ID proof, invoice, or device data for unauthorized use.
- (f) Falsifying re-quote reasons or prices to create unfair margins or lead manipulation.
- (g) Using abusive language, intimidation, harassment, or coercion during customer interactions.
- (h) Attempting to misrepresent Cashkr's policies, discounts, services, or legal identity to the customer.
- (i) Misrepresenting personal identity or using another person's login credentials to access the Partner App.
- (j) Reselling, transferring, or rerouting devices to third parties without completing formal intake on the App.

7.3 Use of Cashkr Brand and Property

- (a) The Vendor shall not use the Cashkr name, logo, or branding for any commercial, promotional, or personal use without prior written approval.
- (b) The Vendor shall not reproduce, alter, or distribute any communication or material issued by Cashkr unless explicitly permitted.
- (c) Use of the Cashkr brand in unaffiliated websites, SMS, WhatsApp messages, or other media is strictly prohibited.

7.4 Confidentiality and Data Handling

- (a) All customer information obtained during lead fulfillment is strictly confidential and shall only be used for the purposes of that specific transaction.
- (b) Vendors are not allowed to store, forward, or reuse this information, including contact details, addresses, or financial data.

- (c) Cashkr reserves the right to initiate civil and criminal proceedings against any Vendor involved in breach of customer data or unauthorized disclosures.

7.5 Duty to Report Suspicious Activity

- (a) If the Vendor suspects that a device is stolen, fake, tampered with, or accompanied by forged documents, they must **not proceed with the pickup** and must notify Cashkr immediately via the App or Relationship Manager.
- (b) Proceeding with a lead despite known risk indicators will be treated as intentional abetment and subject to legal penalties.

7.6 Anti-Bribery and Anti-Corruption

- (a) The Vendor shall not offer or receive any bribes, kickbacks, commissions, or illicit favors to influence lead allocation, refund decisions, or any other outcome with Cashkr.
- (b) Any Vendor found guilty of attempting to corruptly influence internal personnel will be prosecuted under the Prevention of Corruption Act, 1988.

8. TERMINATION, BLACKLISTING & CONSEQUENCES OF BREACH

This section outlines the grounds, procedures, and consequences for termination of this Agreement, blacklisting of a Vendor, and penalties applicable in case of a contractual or legal violation. Cashkr reserves the right to protect its customers, systems, and brand integrity through immediate enforcement of this section without prior notice in serious cases.

8.1 Termination by Cashkr

Cashkr may terminate this Agreement and deactivate or permanently suspend the Vendor's access to the Cashkr Partner App, with or without notice, in the following situations:

- (a) Any material breach of obligations outlined in this Agreement.
- (b) Repeated customer complaints regarding misconduct, fraud, coercion, or misrepresentation.
- (c) Non-compliance with re-quote procedures, payment guidelines, or documentation rules.
- (d) Attempt to divert Cashkr's leads or customers for personal or third-party benefit.
- (e) Submission of falsified documents or misreporting of payment or pickup details.

- (f) Failure to cooperate with Cashkr's investigations, audits, or compliance checks.
- (g) Use of third-party logins or impersonation of another registered Vendor.
- (h) Refusal to comply with instructions issued by Relationship Managers or Cashkr operations team.
- (i) Legal notices or law enforcement reports received against the Vendor during engagement.

Termination shall be effective immediately upon triggering of any above grounds, and the Vendor shall not be eligible for any refund of unused credits or pending leads.

8.2 Termination by Vendor

- The Vendor may choose to terminate this Agreement voluntarily by sending an official request via email to **support@cashkr.com**. Such termination shall become effective only after all active leads have been fulfilled or cancelled by the system, and all disputes, dues, and documentation have been resolved.
- Upon successful completion of exit formalities, the Vendor's profile will be closed, and any refund, if applicable, will be processed as per final verification.

8.3 Suspension & Warning Policy

- (a) For minor or first-time offenses, Cashkr may issue a written or in-app **warning**.
- (b) Upon second violation, Cashkr may impose a **temporary suspension** of 7-30 days depending on severity.
- (c) A third violation or any major misconduct will lead to **permanent blacklisting**.

Vendors who are blacklisted will be barred from registering again under any other name, number, or entity. Any attempt to do so shall be treated as willful fraud.

8.4 Legal Action and Liability

- (a) In the event of intentional fraud, data theft, financial manipulation, or impersonation, Cashkr reserves the right to initiate **civil and criminal proceedings** under the applicable laws of India.
- (b) Cashkr also retains the right to recover any financial losses, legal fees, or damages caused by the Vendor through appropriate legal recourse, including but not limited to:
 - Recovery under the Indian Contract Act, 1872
 - Prosecution under Sections 406, 420, 463, 464, 468, and 471 of the IPC

- Reporting to Cyber Crime Cells or Local Police Authorities

8.5 Effect of Termination

Upon termination of this Agreement:

- The Vendor shall immediately cease using the Partner App and delete any downloaded or printed material, reports, screenshots, or data associated with the App.
- No further leads will be assigned or accepted.
- The Vendor shall not represent themselves as affiliated with Cashkr in any way.
- Any device or documentation in the Vendor's possession must be surrendered to Cashkr or returned to the respective customer, as directed.
- **All credits in the Vendor's wallet balance are non-refundable** and will be forfeited upon termination.

9. INTELLECTUAL PROPERTY, DATA PROTECTION & CONFIDENTIALITY

This section outlines the intellectual property rights of Cashk, data protection responsibilities of the Vendor, and strict confidentiality obligations arising out of this Agreement. These terms are binding and non-negotiable and shall survive even after termination of the Vendor's association with Cashkr.

9.1 Ownership of Intellectual Property

- (a) All intellectual property, including but not limited to the name "**Cashkr**", its logo, slogans, visual identity, mobile application, backend software, databases, pricing engine, designs, training content, manuals, business processes, customer data, partner app workflows, and documentation formats, shall remain the **exclusive and perpetual property** of BigBold Technologies Pvt. Ltd.
- (b) The Vendor is granted a **non-exclusive, non-transferable, revocable, and limited license** to use the Cashkr Partner App and associated tools solely for the purpose of fulfilling leads assigned by Cashkr.
- (c) The Vendor shall not copy, modify, adapt, reverse engineer, publish, sell, sub-license, or create derivative works from any intellectual property belonging to Cashkr.

9.2 Restrictions on Use of Branding and Assets

- (a) The Vendor shall not use the Cashkr name, logo, tagline, or associated branding for marketing, advertising, or public display without prior written consent.
- (b) The Vendor shall not print, publish, distribute, or circulate promotional material - digital or physical-bearing Cashkr's identity, unless officially supplied or approved by Cashkr.
- (c) Unauthorized use or imitation of the Cashkr identity shall be considered **brand infringement** and may result in civil or criminal action under the Trade Marks Act, 1999.

9.3 Data Ownership and Protection

- (a) All data submitted by the Customer-including but not limited to name, contact details, pickup address, ID proof, device images, IMEI/serial numbers, and payment information-shall be considered **sensitive personal data owned solely by Cashkr**.
- (b) The Vendor acts only as a temporary data handler and shall never copy, store, export, download, transmit, or retain customer data in any form-digital, printed, or verbal —after the completion of the lead.
- (c) Any breach of this provision, including accidental leaks or unauthorized transmission, shall constitute a **criminal violation** under Section 72A of the Information Technology Act, 2000 and relevant data protection regulations in India.

9.4 Confidentiality Obligations

- (a) The Vendor agrees to maintain strict confidentiality regarding any information, policies, pricing logic, business methods, operational tools, employee information, or customer behavior insights accessed during their engagement.
- (b) Such information shall not be shared with any third party, used for competing purposes, or disclosed after termination of this Agreement.
- (c) Any such misuse, whether deliberate or negligent, shall constitute a material breach and will entitle Cashkr to initiate legal action, including **seeking injunctions, damages, and recovery of losses**.

9.5 Obligations in Case of Security Breach

- (a) If the Vendor becomes aware of any unauthorized access, data loss, theft, system compromise, or breach of confidentiality, they must immediately notify Cashkr within **12 hours** via official communication channels.

- (b) The Vendor must cooperate fully in any investigation and follow any corrective actions, data recovery steps, or mitigation measures as directed by Cashkr.
- (c) Failure to report a breach, or attempt to conceal it, will be treated as willful misconduct and result in termination and legal escalation.

10. GOVERNING LAW, JURISDICTION & GENERAL LEGAL CLAUSES

This section governs the legal framework within which this Agreement is interpreted, enforced, and resolved in case of any dispute or ambiguity. It also addresses general contractual elements applicable to all parties bound by this Agreement.

10.1 Governing Law

- This Agreement shall be governed, construed, and enforced in accordance with the **laws of the Republic of India**, without regard to conflict of law provisions.
- The Vendor and Cashkr agree to be bound by statutes including (but not limited to): • The Indian Contract Act, 1872 • The Information Technology Act, 2000 • The Consumer Protection Act, 2019
- The Indian Penal Code, 1860 • The Trade Marks Act, 1999 • The Income Tax Act, 1961 (for applicable financial compliances)

10.2 Jurisdiction

- The parties agree that any dispute, claim, or controversy arising out of or in connection with this Agreement shall be subject to the exclusive jurisdiction of the courts located in New Delhi, India.
- Both parties waive any objection to such jurisdiction on the grounds of venue, residence, or inconvenience.

10.3 Dispute Resolution

- In the event of any disagreement, the Vendor shall first approach their assigned Relationship Manager or write to **support@cashkr.com** for internal resolution.
- If the matter remains unresolved within **15 working days**, it may be escalated to Cashkr's legal department for mediation.
- Formal litigation shall be considered only as a last resort and only after all internal remedies have been exhausted in good faith.

10.4 Notices

Any legal notice, warning, or formal correspondence under this Agreement shall be sent via email to:

- **Vendor:** The email provided at the time of registration on the Partner App.
- **Cashkr:** legal@cashkr.com or support@cashkr.com

Notices shall be deemed served upon successful electronic transmission.

10.5 Severability

If any provision of this Agreement is held to be invalid, unlawful, or unenforceable by a court of competent jurisdiction, such provision shall be severed from the remainder of the Agreement, and the remaining provisions shall remain in full force and effect.

10.6 Waiver

No failure or delay by Cashkr in exercising any right or remedy under this Agreement shall operate as a waiver thereof. No single or partial exercise of any right or remedy shall preclude further exercise.

10.7 Entire Agreement

- This Agreement constitutes the **entire understanding** between the parties with respect to its subject matter, and supersedes all prior discussions, communications, or agreements (whether written or oral).
- No changes or modifications to this Agreement shall be valid unless made in writing and formally communicated through the Partner App or official email channels by Cashkr.

10.8 Force Majeure

Neither party shall be held liable for failure or delay in performance of obligations due to events beyond reasonable control including: natural disasters, extreme weather conditions, war, terrorism, riots, epidemics, government lockdowns, regulatory interventions, or other unforeseeable circumstances.

10.9 Digital Execution & Consent

- This Agreement shall be deemed legally executed upon the Vendor's digital acceptance through the Cashkr Partner App.
- The Vendor acknowledges that this digital execution has the same legal effect as a handwritten signature under the Information Technology Act, 2000.

11. EXECUTION AND ACCEPTANCE

By digitally or physically signing this Agreement, the Vendor acknowledges that they have read, understood, and agreed to all the terms and conditions set forth herein.

The Vendor further confirms that they enter into this Agreement voluntarily, with full authority to do so, and agree to be bound by its provisions, including but not limited to obligations relating to compliance, confidentiality, payment integrity, and operational conduct.

This Agreement is executed on the date mentioned below and shall remain valid until terminated in accordance with the provisions herein.

For the Vendor (Independent Service Provider)

Vendor/Partner Name: Mahaveer B Kumawat

Authorized Signatory: Mahaveer B Kumawat

Signature: 

Mobile Number (as per registration): 8866866158

Email ID (as per registration): techbuddy214@g
mail.com

Date: 2025-11-19

Place: Ahmedabad